

**CHAPTER cxix.**

An Act to confirm certain Provisional Orders made by the Board of Trade under the Electric Lighting Acts 1882 to 1909 relating to Ayr Burgh (Extension) Edinburgh Corporation (Extension) and Galashiels and District.

A.D. 1914.

[31st July 1914.]

WHEREAS under the authority of the Electric Lighting Acts 1882 to 1909 the Board of Trade have made the several Provisional Orders set out in the schedule to this Act:

45 & 46 Vict.
c. 56.51 & 52 Vict.
c. 12.

And whereas a Provisional Order made by the Board of Trade under the authority of the said Acts is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

53 & 54 Vict.
c. 13.

2 Edw. 7.

c. 35.

9 Edw. 7.

c. 34.

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the authority of the said Acts as set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. This Act may be cited as the Electric Lighting Orders Confirmation (No. 6) Act 1914.

Short title.

2. The several Orders as amended and set out in the schedule to this Act are hereby confirmed and the same shall from and after the passing and subject to the provisions of this Act have full validity and effect.

Orders in
schedule
confirmed.

3.—(1) Nothing in the Ayr Burgh Electric Lighting (Extension) Order 1914 confirmed by this Act shall in any way limit or affect the powers of the county council of the county of Ayr (in this section referred to as "the county council") to

For pro-
tection of
county
council of
county of
Ayr.

A.D. 1914. — rebuild alter widen or repair the structure of any bridge upon which any work by the Order authorised shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of the Order.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the Order authorised they shall prior to the commencement of such works give the Undertakers one month's notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the county council necessary to temporarily remove the mains and other electrical appliances belonging to the Undertakers from such bridge then the Undertakers shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute arises between the county council and the Undertakers with regard to this section the same shall be determined by an arbiter to be appointed on the application of either party by the Board of Trade.

For protec-
tion of Rox-
burgh
County
Council.

4.—(1) Nothing in the Galashiels and District Electric Lighting Order 1914 confirmed by this Act shall in any way limit or affect the powers of the Roxburghshire County Council (in this section referred to as "the county council") to rebuild alter widen or repair the structure of any bridge upon which any work by the Order authorised shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of the Order.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any

A.D. 1914.
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bridge which might involve interference with any portion of the undertaking by the Order authorised they shall prior to the commencement of such works give the Undertakers one month's notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the county council necessary to temporarily remove the mains and other electrical appliances belonging to the Undertakers from such bridge then the Undertakers shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute arises between the county council and the Undertakers with regard to this section the same shall be determined by an arbiter to be appointed on the application of either party by the Board of Trade.

5.—(1) Nothing in the Galashiels and District Electric Lighting Order 1914 confirmed by this Act shall in any way limit or affect the powers of the Selkirkshire County Council (in this section referred to as "the county council") to rebuild alter widen or repair the structure of any bridge upon which any work by the Order authorised shall be constructed or impose upon the county council any liability which was not by law imposed upon them prior to the commencement of the Order.

For protec-
tion of Sel-
kirkshire
County
Council.

(2) If at any time the county council require to carry out works for rebuilding altering widening or repairing any bridge which might involve interference with any portion of the undertaking by the Order authorised they shall prior to the commencement of such works give the Undertakers one month's notice of their intention to carry out such works and if in order to avoid interruption to the supply by the Undertakers of electrical energy it is in the opinion of the county council

A.D. 1914. necessary to temporarily remove the mains and other electrical appliances belonging to the Undertakers from such bridge then the Undertakers shall (and they are hereby authorised so to do) at their own expense temporarily carry their cables and wires across such bridge overhead or at the side thereof in such a manner as will not be a danger or inconvenience to the public or unreasonably interfere with the works to be carried out by the county council.

(3) When the rebuilding altering widening or repairing of such bridge shall have been completed the Undertakers shall have the same rights and powers with regard to such bridge and its approaches as they had before the works were carried out.

(4) If any dispute arises between the county council and the Undertakers with regard to this section the same shall be determined by an arbiter to be appointed on the application of either party by the Board of Trade.

Power to
borrow
under provi-
sions of
Edinburgh
Police Acts
and as to
accounts.

6.—(1) The lord provost magistrates and council of the city and royal burgh of Edinburgh may notwithstanding anything contained in the Electric Lighting Acts 1882 to 1909 and the schedule to the Electric Lighting (Clauses) Act 1899 but subject to the consent of the Secretary for Scotland borrow money for and in connection with the purposes of the Edinburgh Corporation Electric Lighting Order 1891 (confirmed by the Electric Lighting Orders Confirmation (No. 6) Act 1891) and the Edinburgh Corporation Electric Lighting (Extension) Order confirmed by this Act under the provisions of the Edinburgh Municipal and Police Acts 1879 to 1913 and any Act or Acts amending the same (all which Acts are hereinafter referred to as the Municipal and Police Acts) with respect to the borrowing of money which provisions shall be and are hereby made applicable to the money so to be borrowed and to the sinking fund for the repayment of money so borrowed in the same way and manner as if the money so to be borrowed for the said purposes were borrowed under the authority of the said Municipal and Police Acts.

(2) The said lord provost magistrates and council may notwithstanding any provision to the contrary contained in the Electric Lighting Acts 1882 to 1909 and the schedule to the Electric Lighting (Clauses) Act 1899 cause the accounts of their

receipts payments and liabilities under the said Orders to be kept audited authenticated and published in like manner as is provided in respect to their accounts under the said Municipal and Police Acts and the provisions of the said Municipal and Police Acts with respect to accounts shall be held to be incorporated with and be applicable in all respects to the objects and purposes of the said Orders. A.D. 1914.

(3) The preceding provisions of this section shall only apply in respect of the said Order confirmed by this Act so far as the said lord provost magistrates and council are for the time being the Undertakers for the purposes of the said Order.

(4) Sections three and four of the said Act of 1891 are hereby repealed without prejudice to anything done or suffered thereunder.

A.D. 1914.

SCHEDULE.

LIST OF ORDERS.

1. Ayr Burgh (Extension).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 to 1909 to the Provost Magistrates and Councillors of the Burgh of Ayr.
 2. Edinburgh Corporation (Extension).—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 to 1909 to the Lord Provost Magistrates and Council of the City and Royal Burgh of Edinburgh.
 3. Galashiels and District.—Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 to 1909 to the Galashiels and District Electric Supply Company Limited.
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AYR BURGH ELECTRIC LIGHTING (EXTENSION).

A.D. 1914.

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 to 1909 to the provost magistrates and councillors of the burgh of Ayr in respect of the burgh of Prestwick portions of the parish of Dundonald and of the united parish of Monkton and Prestwick and portions of the parishes of Ayr Dalrymple and Maybole all in the county of Ayr. Ayr Burgh.

1. This Order may be cited as the Ayr Burgh Electric Lighting (Extension) Order 1914 and the Ayr Burgh Electric Lighting Order 1890 (hereinafter called "the principal Order") and this Order may be cited together as the Ayr Burgh Electric Lighting Orders 1890 and 1914. Short and collective titles.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of section 84 of that schedule) are incorporated with and form part of this Order and the undertaking authorised by the principal Order and the Undertakers in respect thereof shall be subject to those provisions and so much of the principal Order as is inconsistent with those provisions is hereby repealed without prejudice to anything done or suffered thereunder. Provided that sections 23 and 65 of the said schedule shall apply to the undertaking within the area added by this Order as if the Undertakers were the local authority. Incorporation of Electric Lighting (Clauses) Act 1899.

3. Subject to the provisions incorporated with this Order there shall be added to the area of supply for the purposes of the principal Order as amended by this Order the area (hereinafter called "the added area") which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade. Provided that in case of difference between the description in that schedule and the area as delineated on the said map the latter shall prevail. Added area of supply.

4. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets not repairable by the local authority and the tramways within the added area which are mentioned in the Second Schedule to this Order. Power to break up streets &c.

5. The streets and parts of streets within the added area throughout which suitable and sufficient distributing mains for the purposes of general supply are to be laid down within a period of two years after Compulsory works.

A.D. 1914. the commencement of this Order as mentioned in section 21 of the
Ayr Burgh. schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned
in the Third Schedule to this Order.

Limitation of
prices.

6. The Undertakers shall not be entitled to charge higher prices for energy supplied within the added area than are charged by them for the time being for a corresponding supply within the area under the principal Order.

Power of
purchase by
county coun-
cil of Ayr.

7.—(1) The county council of the county of Ayr (hereinafter called "the council") may within six months after the expiration of ten years from the commencement of this Order or within six months after the expiration of every subsequent period of five years by notice in writing require the Undertakers to sell and thereupon the Undertakers shall sell to the council so much of the undertaking under this Order as is situate within the jurisdiction of the council including all lands buildings works materials and plant of the Undertakers suitable to and used by them for the purposes of the undertaking within that jurisdiction upon the terms of paying to the Undertakers an amount equal to the fair market value of the part of the undertaking purchased as a going concern due regard being had to any loss occasioned by severance.

(2) The price to be paid shall in default of agreement be determined by arbitration.

(3) The Board of Trade may determine any other question which arises with reference to the purchase and in default of agreement as to the date on which the purchase is to take effect may fix that date.

(4) From the date on which the purchase takes effect the part of the undertaking purchased including the said lands buildings works materials and plant shall vest in the council freed from any debts mortgages or similar obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers relating to the supply of electricity under this Order within the jurisdiction of the council shall absolutely cease and determine and shall vest in the council.

(5) Before entering upon any arbitration under subsection (2) of this section it shall be determined by agreement between the Undertakers and the council and failing agreement by arbitration what lands buildings works materials and plant are suitable to and used by the Undertakers for the purposes of the undertaking within the jurisdiction of the council and if the council are dissatisfied with the determination of the arbiter they shall for a period of one month after such determination be at liberty to withdraw their notice to purchase Provided that in the event of such withdrawal the council shall pay to the Undertakers the reasonable costs incurred by them in respect of such arbitration.

(6) Nothing in this section shall affect the power of the council as the local authority to purchase under section 2 of the Electric Lighting Act 1888. A.D. 1914.
Ayr Burgh.

8. Section 2 of the Electric Lighting Act 1888 shall apply to the undertaking within the burgh of Prestwick with the following variations:— Section 2 of
Electric
Lighting Act
1888 varied
in respect of
undertaking
within burgh
of Prestwick.

(1) The period of thirty years shall be substituted for the period of forty-two years mentioned in the said section:

(2) The arbiter for the purpose of an arbitration under the said section shall be appointed by the Secretary for Scotland for the time being.

9. This Order shall come into force upon the day when the Act confirming this Order is passed and that day shall be the commencement of this Order. Commence-
ment of
Order.

SCHEDULES.

FIRST SCHEDULE.

THE ADDED AREA.

(1) The burgh of Prestwick as the same is constituted at the commencement of this Order;

(2) So much of the united parish of Monkton and Prestwick and of the parish of Dundonald as the same is constituted at the commencement of this Order as lies within the following boundaries (namely) An area lying to the north of the said burgh of Prestwick comprehended within an imaginary straight line drawn in an easterly direction commencing at the point in the parish of Dundonald at which the stream known as the Pow Burn enters the sea passing thence to the bridge known as the Townhead Bridge on the Ayr and Irvine Road north of the village of Monkton and by another straight line drawn from the said Townhead Bridge in a south-easterly direction to the bridge known as the Brieryside Bridge carrying the road leading from Monkton to Tarbolton viâ Adamton over the said stream and passing thence in a southerly direction following the course of the said stream until it joins the boundary of the said burgh of Prestwick near New Dykes Farm Steading thence following the said burgh boundary to the sea and thence along the low-water mark of spring tides to the point in the parish of Dundonald hereinbefore described as the commencement of the said imaginary straight line; and

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Ayr Burgh.

(3) So much of the parishes of Ayr Dalrymple and Maybole as is included in the following area (that is to say):—

The area comprehended within a line commencing at the eastern end of the northern boundary of the burgh of Ayr and proceeding thence in a straight line in a south-easterly direction to a point on the road leading from Ayr to Mauchline about one hundred and forty yards north-eastward from the milestone indicating a distance of two miles from Ayr by that road thence in a straight line in a southerly direction to a point on the road leading from Ayr to Dalmellington about one hundred and forty-five yards north-westward from Whitehill Smithy thence in a straight line in a southerly direction to the centre of the River Doon at a point in line with the southern boundary of the policies of Monkwood thence in a straight line in a westerly direction to the River Doon at the point where the stream called the Culroy Burn joins that river thence in a northerly direction along the centre of the said river to a point therein about one hundred and forty yards westward from the Mansion House of Doonholm thence along the southern side of the road which skirts the southern side of Doonside Policies and passes Doonside Stables to Doonside Gatehouse on the high road leading from Ayr to Maybole thence in a straight line in a westerly direction to the farm steading of Newark Mains thence along the southern side of the road leading from Newark Mains to the western side of the road leading from Ayr to Fisherton at Burton thence along the western side of the last-mentioned road in a north-easterly direction to the southern side of the approach to Greenan thence along that approach and to low-water mark of the sea at the Deil's Dyke and thence northward along low-water mark of the sea to the southern boundary of the burgh of Ayr and thence along that boundary to the hereinbefore mentioned point of commencement of the said line ;

all in the county of Ayr.

SECOND SCHEDULE.

Streets not repairable by the local authority and tramways which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(A) STREETS :—

In the burgh of Prestwick—

Briarhill Street Caerlaverack Avenue Crandleyhill Road Glenburn Road Gray Street Hunter Street Kingscroft Road Ladykirk Road

Queens Terrace Road Salisbury Place Sandfield Road Pleasantfield
Road Oswald Drive :

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Ayr Burgh.

In the parish of Ayr—

South Sanquhar Road Dalmilling Road road from Whitletts to Laigh
Thorneyflat road from Dalrymple Station by Barrhill Farm and
Drumbarr to Maybole Road :

In the parish of Maybole—

Road leading from the Ayr and Girvan Road by Greenan
Laundry to the sea :

And the roadways on the following bridges over railways and the
approaches thereto :—

In the burgh of Prestwick—

Bridge carrying the Monkton Road over the Glasgow and South
Western Railway (Monkton and Annbank Branch) ;

Bridge carrying Shaw Road over the Glasgow and South Western
Railway (Monkton and Annbank Branch) at Prestwick Cemetery ;

Bridge carrying Maryborough Road over the Glasgow and South
Western Railway :

In the united parishes of Monkton and Prestwick—

Bridge carrying Monkton Station Road over the Glasgow and South
Western Railway at Monkton Station :

In the parish of Ayr—

Bridge carrying Doonholm Road over the Glasgow and South
Western Railway (Maidens and Dunure Light Railway) ;

Bridge carrying Monument Road over the Glasgow and South
Western Railway (Maidens and Dunure Light Railway) at Alloway
Kirk ;

Bridge carrying the South Sanquhar Road over the Glasgow and
South Western Railway (Ayr and Mauchline Branch) near South
Sanquhar Farm :

In the parish of Maybole—

Bridge carrying Longhill Avenue over the Glasgow and South
Western Railway (Maidens and Dunure Light Railway) at Avenue
Cottage ;

Bridge carrying the Ayr and Girvan Road over the Glasgow and
South Western Railway (Maidens and Dunure Light Railway)
near Greenan Castle siding :

And the roadways under the following railway bridges :—

In the burgh of Prestwick—

Bridge carrying the Glasgow and South Western Railway over
Station Road at Prestwick Station ;

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Bridge carrying the Glasgow and South Western Railway over
Grangemuir Road ;

Bridge carrying the Glasgow and South Western Railway over
the footpath or right of way on the south side of and adjoining
the Pow Burn :

In the parish of Ayr—

Bridge carrying the Glasgow and South Western Railway (Maidens
and Dunure Light Railway) over the Ayr and Maybole Road
near Glengall Farm.

(B) TRAMWAYS :—

The tramways of the Corporation beyond the burgh of Ayr situate
as follows :—

In the Ayr and Prestwick Road in the burgh of Prestwick ;

In the Burns' Monument Road in the parish of Ayr.

THIRD SCHEDULE.

*Streets and parts of streets throughout which the Undertakers are to lay
down suitable and sufficient distributing mains for the purposes of
general supply within a period of two years after the commencement
of this Order.*

In the burgh of Prestwick—

Prestwick Road from Ayr Burgh boundary to Prestwick Cross
Station Road Ardayre Road Marina Road Grangemuir Road :

In the parish of Ayr—

Road from Ayr to Maybole viâ Minnishant for a distance of one
mile from the boundary of the burgh of Ayr ;

Road from Ayr to Burns' Monument from the boundary of the
burgh of Ayr to the River Doon.

EDINBURGH CORPORATION ELECTRIC LIGHTING (EXTENSION).

*Edinburgh
Corporation.*

*Provisional Order granted by the Board of Trade under the
Electric Lighting Acts 1882 to 1909 to the lord provost
magistrates and council of the city and Royal burgh of
Edinburgh in respect of the parishes of Cramond Corstorphine
Colinton Liberton and Newton in the county of Midlothian.*

Short and
collective
titles.

1. This Order may be cited as the Edinburgh Corporation
Electric Lighting (Extension) Order 1914 and the Edinburgh Corpora-

tion Electric Lighting Order 1891 (hereinafter called "the principal Order") and this Order may be cited together as the Edinburgh Corporation Electric Lighting Orders 1891 and 1914.

A.D. 1914.

Edinburgh Corporation.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 with the exception of section 84 of that schedule are incorporated with and form part of this Order and the undertaking authorised by the principal Order and the Undertakers in respect thereof shall be subject to those provisions and so much of the principal Order as is inconsistent with those provisions is hereby repealed without prejudice to anything done or suffered thereunder Provided that sections 23 and 65 of the said schedule shall apply to the undertaking within the area added by this Order as if the Undertakers were the local authority.

Incorporation of Electric Lighting (Clauses) Act 1899.

3. Subject to the provisions incorporated with this Order there shall be added to the area of supply for the purposes of the principal Order the area (hereinafter called "the added area") which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade.

Added area of supply.

4. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets railway and tramway which are mentioned in the Second Schedule to this Order.

Power to break up streets &c.

5. The parts of streets within the added area throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Compulsory works.

6.—(1) If at the expiration of three years from the commencement of this Order distributing mains shall not have been laid down in the parish of Newton mentioned in the First Schedule to this Order and forming part of the said area of supply the Board of Trade may if they think fit revoke this Order in respect of the said parish.

Power to revoke Order where no mains are laid.

(2) Nothing in this section shall be construed as affecting the power of the Board of Trade to revoke this Order under the provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899.

7. The Undertakers may charge for the supply of electric energy to consumers within the added area a rate higher than the corresponding rate charged for the time being within the area of supply under the principal Order Provided that such higher rate shall at no time exceed such corresponding rate by more than twenty per centum.

Charge for supply in added area.

A.D. 1914.

Edinburgh Corporation.
Revocation
of orders
made under
section 6 of
Electric
Lighting Act
1909.

8. The orders made by the Board of Trade under section 6 of the Electric Lighting Act 1909 and dated the sixteenth day of December one thousand nine hundred and eleven the twenty-fifth day of January one thousand nine hundred and twelve the nineteenth day of November one thousand nine hundred and twelve the fourth day of February one thousand nine hundred and thirteen the twenty-sixth day of May one thousand nine hundred and thirteen the fourth day of June one thousand nine hundred and thirteen the third day of September one thousand nine hundred and thirteen the twenty-sixth day of November one thousand nine hundred and thirteen the nineteenth day of December one thousand nine hundred and thirteen and the nineteenth day of February one thousand nine hundred and fourteen permitting the Undertakers to give a supply of electricity to certain premises within the added area shall be revoked as from the commencement of this Order but the Undertakers shall in respect of such supply and all electric lines and apparatus provided by them for the purpose of giving the supply have the same rights and powers and be subject to the same duties and obligations as if the supply had been given and the electric lines and apparatus had been so provided by them after the commencement of the Order.

Commence-
ment of
Order.

9. This Order shall come into force upon the day when the Act confirming this Order is passed and that day shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

THE ADDED AREA.

The parishes of Cramond Corstorphine Colinton Liberton and Newton in the county of Midlothian as respectively constituted at the commencement of this Order.

SECOND SCHEDULE.

Streets not repairable by the local authority and railway and tramway which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(A) STREETS :—

Cramond Parish Road from Silverknowes Road to Silverknowes Farm Braepark Keith Terrace Blackhall Columba Road

Blackhall Hillview Terrace Queen's Avenue Queen's Crescent and Forth View Terrace :
 Corstorphine Parish Gylemuir Road Hope Street Victor Park Terrace Forrester Road Belgrave Road Kaimes Road Station Road Traquair Park :
 Liberton Parish Blackford Glen Road Northfield Liberton New Street Gilmerton Mitchell Street Duddingston Station Station Road :
 Colinton Parish Woodhall Terrace Juniper Green Pentland Avenue Road from Colinton Road to Craiglockhart Poorhouse Road from Lanark Road to Millbank and Bogs Mill.

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(B) RAILWAY :—

The level crossing of the North British Railway mineral line at Duddingston.

(C) TRAMWAY :—

The tramway of the Colinton Tramways Company.

 THIRD SCHEDULE.

Parts of streets within the added area throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

In the parish of Cramond—

Loch Road from the junction thereof with Ravelston Dykes to the junction thereof with Queensferry Road ;
 Queensferry Road from the junction thereof with Loch Road to the junction with Saughton South Entry ;
 Cramond Road from the junction thereof with Queensferry Road to the junction thereof with Barnton Avenue ; and
 Barnton Avenue from the junction thereof with Queensferry Road to the eastern boundary of Barnton Golf Course :

In the parish of Corstorphine—

Ravelston Dykes from the junction thereof with Murrayfield Road to the junction thereof with Loch Road the Edinburgh and Glasgow Road from the municipal boundary of the city of Edinburgh at Murrayfield westwards through the village of Corstorphine to the junction of St. John's Road with Victor Park Terrace :

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*Edinburgh
Corporation.*

In the parish of Colinton—

Colinton Road from the municipal boundary of the city of Edinburgh at Craiglockhart to the junction thereof with Patties Road opposite Redford Barracks ground;

Colinton Road from the junction of Patties Road with the said Colinton Road through the village of Colinton across the bridge spanning the valley of the Water of Leith and the Balerno Branch of the Caledonian Railway thence north-westwards along Gillespie Road to its junction with the Lanark Road thence south-westwards through the village of Juniper Green to the western boundary of the parish of Colinton:

In the parish of Liberton—

Penicuik Road from the municipal boundary of the city of Edinburgh at Liberton Dams southwards along Liberton Brae to its junction with the cross road known as Kirkgate leading to Liberton Parish Church thence eastwards along the said road to its junction or point of intersection with the Edinburgh and Lasswade Road otherwise known as the Old Liberton Road thence north-westwards along the said road for a distance of 230 yards or thereby.

GALASHIELS AND DISTRICT ELECTRIC LIGHTING.

*Galashiels
and District.*

Provisional Order granted by the Board of Trade under the Electric Lighting Acts 1882 to 1909 to the Galashiels and District Electric Supply Company Limited in respect of the burghs of Galashiels and Selkirk and portions of the parishes of Galashiels and Selkirk in the county of Selkirk and portion of the parish of Melrose in the county of Roxburgh.

Short title.

1. This Order may be cited as the Galashiels and District Electric Lighting Order 1914.

Incorporation of Electric Lighting (Clauses) Act 1899.

Undertakers.

2. The provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899 (with the exception of section 84 of that schedule) are incorporated with and form part of this Order.

3. The Undertakers for the purposes of this Order and within the meaning of section 2 of the schedule to the Electric Lighting (Clauses) Act 1899 are the Galashiels and District Electric Supply Company Limited whose registered office is situated at 23 Rutland Street Edinburgh.

Area of supply.

4. The area of supply for the purposes of this Order and within the meaning of section 4 of the schedule to the Electric Lighting

(Clauses) Act 1899 shall be the area which is described in the First Schedule to this Order and is more particularly delineated on the map deposited together with this Order at the Board of Trade by the Undertakers and signed by an assistant secretary to the Board of Trade. Provided that in case of difference between the description in the First Schedule and the area as delineated on the said map the latter shall prevail.

A.D. 1914.

Galashiels
and District.

5. Subject to the provisions incorporated with this Order the Undertakers are specially authorised by this Order to break up the streets and parts of streets not repairable by the local authority which are mentioned in the Second Schedule to this Order and the railways which are also mentioned in that schedule.

Power to
break up
streets &c.

6. The streets and parts of streets throughout which suitable and sufficient distributing mains for the purposes of general supply are to be laid down within a period of two years after the commencement of this Order as mentioned in section 21 of the schedule to the Electric Lighting (Clauses) Act 1899 are those mentioned in the Third Schedule to this Order.

Compulsory
works.

7.—(1) If at the expiration of three years from the commencement of this Order distributing mains shall not have been laid down in the burgh of Selkirk and in the several parishes mentioned in the First Schedule to this Order and forming part of the said area of supply the Board of Trade may if they think fit revoke this Order in respect of the said burgh and the said parishes where such mains shall not have been laid.

Power to re-
voke Order
where no
mains are
laid.

(2) Nothing in this section shall be construed as affecting the power of the Board of Trade to revoke this Order under the provisions contained in the schedule to the Electric Lighting (Clauses) Act 1899.

8. The Undertakers may after they shall have acquired either absolutely or otherwise the land described in the Fourth Schedule to this Order use the same for the purposes of the undertaking authorised by this Order and may thereon erect construct maintain use and work a station or stations together with all such buildings engines batteries dynamos accumulators and other plant machinery apparatus water and conveniences as may be necessary or suitable for generating electricity for the purpose of giving a supply under this Order.

Power to use
lands for
erection of
generating
station.

9. If the Undertakers obtain the consent of the Board of Trade under subsection (1) of section 5 of the Electric Lighting Act 1909 to the supply by them within their area of supply of electricity for the purposes of haulage or traction on any railway tramway or canal situate partly within and partly without that area or for the purposes of lighting vehicles and vessels used on any such railway tramway or canal they may so supply electricity to be used for purposes incidental

Supply to
railways &c.
for incidental
purposes.

A.D. 1914. to the working or lighting of such railway tramway or canal other than the purposes aforesaid.

Galashiels
and District.

Maximum
prices.

10. The maximum prices which may be charged by the Undertakers as mentioned in section 32 of the schedule to the Electric Lighting (Clauses) Act 1899 are those stated in the Fifth Schedule to this Order.

Deposit.

11. The sum to be deposited or secured in pursuance of section 5 of the schedule to the Electric Lighting (Clauses) Act 1899 is four hundred pounds made up as follows (namely) one hundred pounds in respect of the burgh of Galashiels one hundred pounds in respect of the burgh of Selkirk one hundred pounds in respect of the county of Selkirk and one hundred pounds in respect of the county of Roxburgh.

Purchase by
county coun-
cils.

12.—(1) Notwithstanding anything contained in section 2 of the Electric Lighting Act 1888 the county council of the county of Selkirk and the county council of the county of Roxburgh (which county councils are in relation to their respective counties in this section severally referred to as "the county council") may at the expiration of a period of thirty years from the commencement of this Order or at the expiration of every subsequent period of six years upon giving twelve months' previous notice in writing to the Undertakers require the Undertakers to sell and thereupon the Undertakers shall sell to the county council so much of the undertaking under this Order as is situate within the jurisdiction of the county council including all lands buildings works materials and plant of the Undertakers suitable to and used by them for the purposes of the undertaking within that jurisdiction (but exclusive of any high tension mains laid by the Undertakers within such jurisdiction which shall be suitable to and used by the Undertakers for the supply of electricity to places within the area of supply which are not within the jurisdiction of the county council) upon the terms of paying to the Undertakers an amount equal to the fair market value of the part of the undertaking purchased as a going concern due regard being had to any loss occasioned by the severance of the undertaking but without any addition in respect of compulsory purchase Provided that if the county council so desire they may after the expiration of a period of twenty-five years from the commencement of this Order upon giving six months' previous notice in writing to the Undertakers require the Undertakers to sell and thereupon the Undertakers shall sell to the county council so much of the undertaking as is described in this subsection upon the terms of paying to the Undertakers an amount equal to the fair market value of the part of the undertaking purchased as a going concern with in addition an allowance for any loss occasioned by severance of the undertaking and for compulsory purchase.

(2) The amount to be paid on any such purchase shall be determined in default of agreement by arbitration. The Board of Trade may determine any other question which arises with reference to the purchase and in default of agreement as to the date on which the purchase is to take effect may fix that date.

A.D. 1914.

Galashiels
and District.

(3) From the date on which the purchase takes effect the part of the undertaking and all lands buildings works materials and plant so purchased as aforesaid shall vest in the county council freed from any debts mortgages or obligations of the Undertakers or attaching to the undertaking and the powers of the Undertakers under this Order in relation to the supply of electricity within the jurisdiction of the county council shall absolutely cease and determine and shall vest in the county council.

(4) The powers of purchase conferred by this section are in addition to and not in derogation of the power of the county council to purchase under section 2 of the Electric Lighting Act 1888.

13. The provost magistrates and councillors of the burghs of Galashiels and Selkirk may purchase so much of the undertaking as is situate within their respective districts at the like periods and subject to the like conditions as are mentioned and contained in the immediately preceding section of this Order in the case of a purchase by the county council of the county of Selkirk or by the county council of the county of Roxburgh and all the provisions of that section shall mutatis mutandis apply accordingly.

Power of
purchase by
corporations
of Galashiels
and Selkirk.

14. If the local authorities in whose district the area of supply is situate obtain from the Board of Trade a Provisional Order for the joint exercise by them by the constitution of a joint committee or joint board or otherwise of the powers conferred upon the Undertakers by this Order and such Provisional Order is confirmed by Parliament they may jointly acquire the undertaking—

Power of
purchase by
a joint board.

(1) At the same periods at which and on the same terms (so far as applicable) on which each local authority is by the provisions of this Order empowered to purchase the part of the undertaking within their district:

(2) Within six months after the expiration of a period of forty-two years from the commencement of this Order and within six months after the expiration of every subsequent period of ten years in accordance with the provisions of section 2 of the Electric Lighting Act 1888 and that section shall apply to such purchase as if the combined local authorities were a local authority within the meaning of the said section.

15. Notwithstanding a purchase by any local authority of the part of the undertaking within their district the Undertakers may for the

As to laying
mains within
district of

A.D. 1914. purpose of giving a supply of electricity in their remaining area of supply exercise the same powers as regards the breaking up of streets railways and tramways in the district of such local authority and of laying down and placing therein electric lines and other works as if the purchase had not been made.

Galashiels and District. local authority who have exercised power of purchase. Commencement of Order.

16. This Order shall come into force upon the day when the Act confirming this Order is passed and that day shall be the commencement of this Order.

SCHEDULES.

FIRST SCHEDULE.

AREA OF SUPPLY.

The municipal burghs of Galashiels and Selkirk as respectively constituted at the commencement of this Order such parts of the parishes of Galashiels and Selkirk in the county of Selkirk and such part of the parish of Melrose in the county of Roxburgh as are contained within the following boundaries (namely):—

Commencing at the Galashiels burgh boundary in the road from Galashiels to Stow following along the said burgh boundary in a south-easterly direction to where it intersects the road leading from Galashiels to Langlee Mains thence in an easterly direction along an imaginary straight line running between the said intersection of the Galashiels burgh boundary and the road leading to Langlee Mains and the junction of the Leader Water with the River Tweed to the point at which the said imaginary straight line intersects the centre line of the River Tweed to the east of Gattonside thence in a south-westerly direction along the centre line of the River Tweed until it meets the Melrose burgh boundary then along that boundary in a westerly and then southerly direction to where that boundary intersects the road leading from Darnick to Faldonside thence along the said road to Faldonside to its junction with the road from Abbotsford to Selkirk thence along the eastern boundary of that road to the Selkirk burgh boundary thence along the eastern boundary of Selkirk Burgh to the junction of Hawick Road with road known as "the Loan" thence in a westerly direction along an imaginary straight line to the intersection of the centre line of the road from Selkirk to Moffat with the centre line of the road leading to Philiphaugh Saw Mill thence in a northerly direction along an imaginary straight line to where the Selkirk parish boundary joins the centre line of the River

Tweed to the north-west of Sunderland Hall thence in an easterly direction along the said parish boundary to where it joins Galashiels parish boundary thence in a northerly direction along that boundary for a distance of one thousand three hundred yards or thereabouts and continuing thence along the road leading to Galashiels past Hollybush to Woodend thence following the western boundary of the policies of Gala House to the Galashiels burgh boundary thence in a north-westerly and north-easterly direction along that boundary to the point of commencement in the road from Galashiels to Stow.

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*Galashiels
and District.*

SECOND SCHEDULE.

Streets and parts of streets not repairable by the local authority and railways which may be broken up by the Undertakers in pursuance of the special powers granted by this Order.

(A) STREETS:—

In the burgh of Galashiels—

Waitknowe Place unnamed street branching off Abbotsford Road opposite Recreation Ground Parsonage Road Barr's Road from Elm Row to the burgh boundary Eildon Street Dean Street between Eildon Street and Thistle Street Buckholm Mill Road leading from Bristol Terrace to Buckholm Mill road from Low Buckholmside to Comely Bank Mill road leading from Station Brae behind Messrs. Lowe's warehouse Langhaugh Road between Melrose Road and Langhaugh Mill the portion of Park Street facing the Gala Water Gala Lane between Channel Street and the Gala Water footpath along the bank of the Gala Water from Dale Street to Galashiels Gasworks and on to Tweed Road :

In the burgh of Selkirk—

Tait's Hill Heatherlie Park Road unnamed road between the Green and Heatherlie Park Road Milburn Place Viewfield Park Road Elm Row Tower Terrace unnamed road behind Tower Terrace Marion Crescent Raeburn Meadow :

And the roadways on the following bridges over railways and the approaches thereto:—

In the burgh of Galashiels—

Bridge carrying the road from Wood Street to Kilnknowe over the North British Railway (Edinburgh and Carlisle Section)
bridge carrying the road from King Street to Magdala Terrace

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—
Galashiels
and District.

over the North British Railway (Edinburgh and Carlisle Section) bridge carrying the road from Bridge Place to High Buckholmside over the North British Railway (Edinburgh and Carlisle Section) bridge carrying the road from Market Street to Melrose Road over the North British Railway at Galashiels Station (Edinburgh and Carlisle Section):

In the parish of Galashiels—

Bridge carrying the road from Selkirk to Abbotsford over the North British Railway (Selkirk Branch) near Lindean Station bridge carrying the road from Netherbarns towards the River Tweed over the North British Railway (Selkirk Branch):

In the parish of Melrose—

Bridge carrying the road from the Melrose-Galashiels Road to Galashiels Gasworks over the North British Railway (Edinburgh and Carlisle Section) bridge carrying the road from Bridgend to Tweedbank over the North British Railway (Edinburgh and Carlisle Section) bridge carrying the road from Abbotsford to Melrose over the North British Railway (Edinburgh and Carlisle Section) bridge carrying the road from Sunnyside to Darnick over the North British Railway (Edinburgh and Carlisle Section) bridge carrying the road from Broomilees to Melrose over the North British Railway (Edinburgh and Carlisle Section):

And the roadways under the following railway bridges:—

In the burgh of Galashiels—

Bridge carrying the North British Railway (Edinburgh and Carlisle Section) over the road from Kings Street to Wheatlands Mill bridges carrying the North British Railway (Selkirk Branch) over the road from Nether Place to the River Tweed and over the footpath from Dale Street to Galashiels Gasworks:

In the parish of Galashiels—

Bridge carrying the North British Railway (Selkirk Branch) over the road from Galashiels to Selkirk:

In the parish of Melrose—

Bridge carrying the North British Railway (Edinburgh and Carlisle Section) over the road from Darnick to Faldonside.

(B) RAILWAYS:

The following level crossings:—

In the burgh of Galashiels—

Siding from the North British Railway (Edinburgh and Carlisle Section) into the premises of Messrs. Sanderson & Murray Ltd. Buckholmside Skinworks siding from the North British Railway (Selkirk Branch) into Netherdale Mill:

In the burgh of Selkirk--

The North British Railway (Selkirk Branch) crossing the road
leading to St. Mary's Mills.

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Galashiels
and District.

THIRD SCHEDULE.

Streets and parts of streets throughout which the Undertakers are to lay down suitable and sufficient distributing mains for the purposes of general supply within a period of two years after the commencement of this Order.

In the burgh of Galashiels—

Huddersfield Street (from the entrance to Gala Mill to Paton Street)
Bank Street Market Street (from Paton Street to the entrance
to the Technical College) Channel Street High Street.

FOURTH SCHEDULE.

LAND FOR GENERATING STATION.

A piece of land situate in the burgh and parish of Galashiels in the county of Selkirk containing an area of two and one-quarter acres or thereabouts bounded on the north and east by the siding into Netherdale Mill from the North British Railway (Selkirk Branch) on the west by an imaginary straight line drawn in a southerly direction for a distance of fifty yards or thereabouts from the gate across the said siding immediately to the east of Netherdale Mill and on the south by a continuation in an easterly direction of the said imaginary straight line for a distance of two hundred and thirty-six yards or thereabouts to the westmost rail of the said siding and coloured pink on the plan deposited in relation thereto at the Board of Trade.

FIFTH SCHEDULE.

MAXIMUM PRICES.

In this schedule—

The expression "unit" shall mean the energy contained in a current of one thousand ampères flowing under an electro-motive force of one volt during one hour.

A.D. 1914.

SECTION 1.

*Galashiels
and District.*

Where the Undertakers charge any consumer by the actual amount of energy supplied to him they shall be entitled to charge him at the following rates per quarter:—

- (1) In the case of a supply to the local authority or any public lighting authority and in the case of a supply to any consumer for power purposes—

(a) For any quantity not exceeding the equivalent of four hundred hours of supply at the maximum power which has been demanded by the consumer at the rate of threepence per unit;

(b) For any further quantity exceeding the equivalent of four hundred hours of supply at such maximum power at the rate of twopence per unit:

The prices so charged under this subsection shall include the cost of transforming the energy if so required by the authority or person supplied to such pressure and in the case of a supply in bulk to a local authority or to any public lighting authority to such description of current as the authority or person respectively may reasonably require:

- (2) In the case of a supply to any consumer other than a local authority or public lighting authority for any other purpose for any amount up to twenty units ten shillings and for each unit over twenty units sixpence.

SECTION 2.

Where the Undertakers charge any consumer by the electrical quantity contained in the supply given to him they shall be entitled to charge him according to the rates set forth in section 1 of this schedule the amount of energy supplied to him being taken to be the product of that electrical quantity and the declared pressure at the consumer's terminals that is to say such a constant pressure at those terminals as may be declared by the Undertakers under the Board of Trade regulations.

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